

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DAMION HOWELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ROBERT SABELLA, Tax Id. No. 951193, Individually and in his Official Capacity, P.O. LAWRENCE SLOAN, Tax Id. No. 951270, Individually and in his Official Capacity, P.O. BRENDAN LANGENFELD, Tax Id. No. 966661, Individually and in his Official Capacity, P.O. DANIEL LEBOFF, Tax Id. No. 958803, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown).

Defendants.

-----X

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
December 22, 2020

COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

JAMES E. JOHNSON
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. ROBERT SABELLA, Tax Id. No. 951193
105th Precinct
92-08 222nd St.
Queens Village, NY 11428

P.O. LAWRENCE SLOAN, Tax Id. No. 951270
105th Precinct
92-08 222nd St.
Queens Village, NY 11428

P.O. BRENDAN LANGENFELD, Tax Id. No. 966661
113th Precinct
167-02 Baisley Blvd.
Jamaica, NY 11434

P.O. DANIEL LEBOFF, Tax Id. No. 958803
113th Precinct Detective Squad
167-02 Baisley Blvd.
Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DAMION HOWELL,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, P.O. ROBERT SABELLA, Tax Id. No. 951193, Individually and in his Official Capacity, P.O. LAWRENCE SLOAN, Tax Id. No. 951270, Individually and in his Official Capacity, P.O. BRENDAN LANGENFELD, Tax Id. No. 966661, Individually and in his Official Capacity, P.O. DANIEL LEBOFF, Tax Id. No. 958803, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown).

Defendants.

-----X

Plaintiff DAMION HOWELL by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff DAMION HOWELL is an African-American male and has been at all relevant times a resident of Queens County in the State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. ROBERT SABELLA, Tax Id. No. 951193, P.O. LAWRENCE SLOAN, Tax Id. No. 951270, P.O. BRENDAN LANGENFELD, Tax Id. No. 966661, P.O. DANIEL LEBOFF, Tax Id. No. 958803, and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The January 25, 2019 Incident

8. On or about January 25, 2019, at approximately between 3:48 a.m. and 4:01 a.m. in the County of Queens, City, and State of New York, plaintiff DAMION HOWELL was lawfully driving in the vicinity of 135th Ave. and Laurelton Parkway and had not committed any traffic violations and/or equipment infractions, when he was pulled over by defendant NYPD officers SABELLA, SLOAN, and/or “JOHN DOE” #1-10.

9. At no time on January 25, 2019, did defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to pull over plaintiff’s vehicle.

10. At no time on January 25, 2019, did defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to pull over plaintiff’s vehicle.

11. Subsequently, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 approached plaintiff’s vehicle and requested his license. Plaintiff complied and provided same, to wit, a valid Texas license.

12. Thereafter, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 directed plaintiff to exit his vehicle. Plaintiff complied and exited said vehicle.

13. Upon plaintiff’s exit, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 searched plaintiff’s person and effects. No contraband was found on plaintiff’s person or effects as a result of this search.

14. At no time on January 25, 2019, did defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s persons or effects nor did plaintiff consent to this search.

15. Subsequently, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 directed plaintiff to get back into his vehicle. Plaintiff again complied.

16. Several minutes later, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 re-approached plaintiff’s vehicle and again directed him to exit same. Plaintiff again complied, and immediately thereafter, plaintiff was placed under arrest by defendants

SABELLA, SLOAN, and/or “JOHN DOE” #1-10 who handcuffed his arms tightly behind his back and then placed him into a police vehicle.

17. At no time on January 25, 2019, did defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

18. At no time on January 25, 2019, did defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

19. In addition, upon information and belief, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 searched plaintiff’s vehicle.

20. At no time on January 25, 2019, did defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search plaintiff’s vehicle nor did plaintiff consent to this search.

21. At no time on January 25, 2019, did defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s vehicle nor did plaintiff consent to this search.

22. Thereafter, plaintiff was transported to a nearby police precinct where he was searched, fingerprinted, photographed, questioned, confined against his will in a holding cell for several hours, and charged with crimes by defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10. Specifically, plaintiff was charged with Criminal Possession of a Weapon, Criminal Possession of Marijuana, Unlawful Possession of Marijuana, Driving by Unlicensed Operator, and violating VTL 1111-D1 (Red Traffic Signal Light).

23. Subsequently, plaintiff was transported to Central Booking where he was searched again, subjected to a retina scan (a.k.a. an “eye scan”), moved from cell to cell, and further detained. No contraband was found on plaintiff’s person and/or effects as a result of any searches nor did plaintiff have custody or control over any contraband.

24. In connection with plaintiffs’ arrest, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney’s Office. Thereafter, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff’s arrest. Specifically, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 falsely stated, *inter alia*, that they observed plaintiff make a turn at a steady red light, that they smelled a strong odor of marijuana emanating from plaintiff’s motor vehicle, that they recovered a gravity knife from plaintiff, that they recovered a burnt marijuana cigarette from the front passenger floor of plaintiff’s vehicle, that they observed and recovered a bag containing marijuana from the rear passenger seat of plaintiff’s vehicle, and that plaintiff was unable to produce a valid license.

25. At no time on January 25, 2019, did plaintiff make a turn at a steady red light, nor did plaintiff possess any controlled substances, marijuana, a gravity knife, and/or any other contraband, or have custody and control over any controlled substances, marijuana, a gravity knife, and/or any other contraband, nor did plaintiff fail to produce a valid license, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way.

26. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody and made multiple court appearances (approximately nine (9)) before all charges against him were dismissed in their entirety on or about April 28, 2020.

27. In addition, as a result of the foregoing, plaintiff suffered physical injuries to his wrists as a result of being tightly handcuffed and missed work, causing him to lose wages.

28. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, physical injuries, economic damages, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

The July 1, 2019 Incident

29. On or about July 1, 2019, at approximately 10:30 p.m. in the County of Queens, City, and State of New York, plaintiff DAMION HOWELL was a passenger in a vehicle, which was lawfully parked in the vicinity of 119th Road between 153rd Street and Sutphin Blvd.

30. On the above-mentioned date and time, and at the above-mentioned location, plaintiff was accosted by defendant NYPD officers LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10, who approached the vehicle plaintiff was in and directed plaintiff to exit same. Plaintiff complied.

31. Upon plaintiff’s exit, plaintiff was placed under arrest by defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 who handcuffed his arms tightly behind his back, searched plaintiff’s person and effects, and then placed plaintiff into a police vehicle. No contraband was found on plaintiff’s person or effects as a result of this search nor did plaintiff have custody or control over any contraband.

32. At no time on July 1, 2019, did defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s persons or effects nor did plaintiff consent to this search.

33. At no time on July 1, 2019, did defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

34. At no time on July 1, 2019, did defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

35. In addition, upon information and belief, defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 searched the vehicle wherein plaintiff was a passenger.

36. At no time on July 1, 2019, did defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search the vehicle wherein plaintiff was a passenger nor did plaintiff or the driver of said vehicle consent to this search.

37. At no time on July 1, 2019, did defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search the vehicle wherein plaintiff was a passenger nor did plaintiff or the driver of said vehicle consent to this search.

38. Thereafter, plaintiff was transported to a nearby police precinct where he was searched, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes by defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10. Specifically, plaintiff was charged with Obstructing Governmental Administration and Unlawful Possession of Marijuana.

39. Subsequently, plaintiff was transported to Central Booking where he was searched again, subjected to a retina scan (a.k.a. an “eye scan”), moved from cell to cell, and

further detained. No contraband was found on plaintiff's person and/or effects as a result of any searches nor did plaintiff have custody or control over any contraband.

40. In connection with plaintiffs' arrest, defendants LANGENFELD, LEBOFF, and/or "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney's Office. Thereafter, defendants LANGENFELD, LEBOFF, and/or "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants LANGENFELD, LEBOFF, and/or "JOHN DOE" #1-10 falsely stated, *inter alia*, that they smelled a strong odor of marijuana emanating from the motor vehicle plaintiff was a passenger in, that they observed plaintiff with an unlit marijuana cigarette in his mouth, that they observed plaintiff hand said unlit marijuana cigarette to the driver of said vehicle, and that plaintiff repeatedly refused to provide them with identification upon request.

41. At no time on July 1, 2019, did plaintiff possess any controlled substances, marijuana, and/or any other contraband, or have custody and control over any controlled substances, marijuana, and/or any other contraband, nor did plaintiff refused to provide identification, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way.

42. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody and made multiple court appearances (approximately six (6)) before all charges against him were dismissed in their entirety on or about December 9, 2019.

43. In addition, as a result of the foregoing, plaintiff suffered physical injuries to his wrists as a result of being tightly handcuffed and missed work, causing him to lose wages.

44. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, physical injuries, economic damages, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS

**FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983
(As to the 1/25/2019 and 7/1/2019 Incidents)**

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

47. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

48. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

49. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

50. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST ARISING UNDER 42 U.S.C. § 1983
(As to the 1/25/2019 Incident)

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

52. As a result of the aforesaid conduct by defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

53. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
FALSE ARREST ARISING UNDER 42 U.S.C. § 1983
(As to the 7/1/2019 Incident)

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

55. As a result of the aforesaid conduct by defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

56. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF ARISING
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983
(As to the 1/25/2019 Incident)

57. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 misrepresented and falsified evidence before the New York County District Attorney.

59. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 did not make a complete and full statement of facts to the District Attorney.

60. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 withheld exculpatory evidence from the District Attorney.

61. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

62. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

63. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 acted with malice in initiating criminal proceedings against plaintiff.

64. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

65. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

66. Defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

67. Defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

68. Specifically, defendants’ SABELLA, SLOAN, and/or “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

69. Notwithstanding the perjurious and fraudulent conduct of defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on or about April 28, 2020.

70. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FIFTH CLAIM FOR RELIEF ARISING
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983
(As to the 7/1/2019 Incident)**

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

72. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

73. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 misrepresented and falsified evidence before the New York County District Attorney.

74. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

75. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

76. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

77. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

78. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

79. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

80. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

81. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

82. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

83. Specifically, defendants’ LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

84. Notwithstanding the perjurious and fraudulent conduct of defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on or about December 9, 2019.

85. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983
(As to the 1/25/2019 Incident)

86. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

87. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 created false evidence against the plaintiff.

88. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office – namely, defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 falsely stated, *inter alia*, that they observed plaintiff make a turn at a steady red light, that they smelled a strong odor of marijuana emanating from plaintiff's motor vehicle, that they recovered a gravity knife from plaintiff, that they recovered a burnt marijuana cigarette from the front passenger floor of plaintiff's vehicle, that they observed and recovered a bag containing marijuana from the rear passenger seat of plaintiff's vehicle, and that plaintiff was unable to produce a valid license.

89. Defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

90. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants SABELLA, SLOAN, and/or "JOHN DOE" #1-10 violated plaintiff's constitutional right to a fair

trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

91. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983
(As to the 7/1/2019 Incident)

92. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

93. Defendants A LANGENFELD, LEBOFF, and/or "JOHN DOE" #1-10 created false evidence against the plaintiff.

94. Defendants LANGENFELD, LEBOFF, and/or "JOHN DOE" #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office – namely, defendants LANGENFELD, LEBOFF, and/or "JOHN DOE" #1-10 falsely stated, *inter alia*, that they smelled a strong odor of marijuana emanating from the motor vehicle plaintiff was a passenger in, that they observed plaintiff with an unlit marijuana cigarette in his mouth, that they observed plaintiff hand said unlit marijuana cigarette to the driver of said vehicle, and that plaintiff repeatedly refused to provide them with identification upon request.

95. Defendants LANGENFELD, LEBOFF, and/or "JOHN DOE" #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

96. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants

LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

97. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983
(As to the 1/25/2019 and 7/1/2019 Incidents)

98. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

99. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

100. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer’s arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,

- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics; and,

101. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.

102. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

103. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

104. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

105. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

106. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

PENDANT STATE CLAIMS

107. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

108. On or about February 21, 2020, and within (90) days after the claims herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e) as to the July 1, 2019 Incident.

109. On or about June 10, 2020, and within (90) days after the claims herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e) as to the January 25, 2019 Incident.

110. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof as to either Notice of Claim and more than thirty (30) days have elapsed since the presentation of such claims as aforesaid.

111. Defendant THE CITY OF NEW YORK demanded a hearing as to both claims pursuant to General Municipal Law § 50-h and said hearings were both held on August 4, 2020.

112. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

113. Plaintiff has and/or will comply with all conditions precedent to maintaining the instant action.

114. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION
(As to the 1/25/2019 Incident)

115. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

116. On or about January 25, 2019, defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 commenced a criminal proceeding against plaintiff.

117. Defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 lacked probable cause to commence said criminal proceeding against plaintiff.

118. Defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 were motivated by actual malice in commencing said criminal proceeding against plaintiff.

119. From January 25, 2019, through April 28, 2020, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10.

120. As a result of the malicious prosecution against him, plaintiff spent approximately thirteen (13) months making court appearances.

121. On or about April 28, 2020, the criminal prosecution against plaintiff terminated in his favor and all charges against him were dismissed.

122. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, economic damage, and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION
(As to the 7/1/2019 Incident)

123. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

124. On or about July 1, 2019, LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 commenced a criminal proceeding against plaintiff.

125. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 lacked probable cause to commence said criminal proceeding against plaintiff.

126. Defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 were motivated by actual malice in commencing said criminal proceeding against plaintiff.

127. From July 1, 2019, through December 9, 2019, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10.

128. As a result of the malicious prosecution against him, plaintiff spent approximately six (6) months making court appearances.

129. On or about December 9, 2019, the criminal prosecution against plaintiff terminated in his favor and all charges against him were dismissed.

130. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, economic damage, and loss of freedom.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
(As to the 1/25/2019 Incident)

131. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

132. The aforementioned conduct by defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 was extreme and outrageous, and exceeded all reasonable bounds of decency.

133. The aforementioned conduct was committed by defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

134. The aforementioned conduct was committed by defendants SABELLA, SLOAN, and/or “JOHN DOE” #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

135. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

136. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
(As to the 7/1/2019 Incident)

137. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

138. The aforementioned conduct by defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 was extreme and outrageous, and exceeded all reasonable bounds of decency.

139. The aforementioned conduct was committed by defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

140. The aforementioned conduct was committed by defendants LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

141. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

142. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION
(As to the 1/25/2019 and 7/1/2019 Incidents)**

143. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

144. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above, to wit – defendants SABELLA, SLOAN, LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10.

145. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above, to wit – defendants SABELLA, SLOAN, LANGENFELD, LEBOFF, and/or “JOHN DOE” #1-10.

146. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain, and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys’ fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys’ fees, interest, costs, and disbursements of this action.

Dated: New York, New York
December 22, 2020

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff DAMION HOWELL in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
December 22, 2020

_____/S_____
ILYSSA S. FUCHS